

HOUSE No. 2922

The Commonwealth of Massachusetts

PRESENTED BY:

David K. Muradian, Jr. and Michael O. Moore

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act regarding the disability pension for John Moran administered by the Middlesex county retirement board.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>David K. Muradian, Jr.</i>	<i>9th Worcester</i>	<i>1/16/2025</i>

HOUSE No. 2922

By Representative Muradian of Grafton and Senator Moore, a joint petition (accompanied by bill, House, No. 2922) of David K. Muradian, Jr. that the Middlesex county retirement board be authorized to increase the accidental disability retirement allowance payable to John Moran, a retired police officer of the town of Hopkinton. Public Service.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act regarding the disability pension for John Moran administered by the Middlesex county retirement board.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. (a) Notwithstanding any general or special law to the contrary, the
2 Middlesex county retirement board shall increase the accidental disability retirement allowance
3 payable to John Moran, a retired police officer of the police department of the town of
4 Hopkinton who, as a result of injuries sustained while in the performance of his duties on July
5 24, 2017, is totally and permanently incapacitated from performing the essential duties of a
6 police officer.

7
8 (b) The annual amount of pension payable to John Moran shall be equal to the regular
9 rate of compensation which would have been paid had he continued in service as a police officer
10 of the town of Hopkinton at the grade held by him at the time of his retirement until his death or

11 reaching mandatory retirement age, whichever comes first. All amounts paid under this act shall
12 be non-taxable to the extent allowable under state and federal law.

13
14 (c) Notwithstanding section 91A of chapter 32 of the General Laws or any other general
15 or special law to the contrary, John Moran's annual earnings, when added to his retirement
16 allowance, may annually earn up to 1/2 the amount of his retirement allowance without refund
17 penalty.

18 (d) Upon attaining the mandatory retirement age for a police officer of the town of
19 Hopkinton, John Moran shall receive a pension, pursuant to section 7 of chapter 32 of the
20 General Laws, a yearly amount of pension equal to 80 per cent of the annual rate of the
21 compensation he was receiving on the day before he reaches the mandatory retirement age for a
22 police officer in the town of Hopkinton.

23 (e) Notwithstanding any general or special law to the contrary, the benefits granted herein
24 shall be funded and administered by the Middlesex county retirement board, consistent with and
25 subject to chapter 32 of the General Laws.

26 SECTION 2. Notwithstanding any general or special law to the contrary, John Moran
27 shall be entitled to receive indemnification for all hospital, medical and related expenses that
28 have been or may be incurred after the date of his retirement as a result of the injuries sustained
29 by him while in the performance of his duties on July 24, 2017, in accordance with sections 100
30 and 100B of chapter 41 of the General Laws.

31 SECTION 3. Notwithstanding any general or special law to the contrary, the Middlesex
32 county retirement board shall forthwith pay to said John Moran the amount credited to him as
33 accumulated total deductions in the annuity savings fund of the Middlesex county retirement
34 board as of the effective date of this act.

35 SECTION 4. Notwithstanding any general or special law to the contrary, if John Moran
36 was married upon retirement then, upon his death, if he is still married to the spouse he was
37 married to upon retirement then, should his said spouse to whom he was married on the date
38 upon retirement survive him, the Middlesex county retirement board shall pay to the said spouse
39 an annuity in the amount of 75 per cent of the amount of the pension which otherwise would
40 have been payable to John Moran until his said spouse's death. The pension benefits provided for
41 in this section and section 1 shall be subject to section 103 of chapter 32 of the General Laws.

42 SECTION 5. In the event that both John Moran and his spouse to whom he was married
43 on the date upon retirement die before their children reach the age of 18 the payments that would
44 otherwise have been made to John Moran's spouse shall be payable, per stirpes, to each
45 surviving child under the age of 18; provided, however, that payments shall continue for the
46 benefit of a surviving child 18 years or older who, on or before the date of death of John Moran
47 or his spouse to whom he was married on the date upon retirement, whichever is later, had been
48 medically determined to be permanently physically or mentally incapacitated from earning or for
49 the benefit of a child under the age of 22 who is enrolled as a full-time student as determined by
50 the criteria of the educational institution.

51 SECTION 6. This act shall take effect upon its passage.